

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 24, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Tom Segrave and Jeff White. Absent: Scott Roybal. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White, and pursuant to support received by Dr. Aldrich and Mr. Cook, item #18(a) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on April 10, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for disposal of real property and land exchange between the City of Cheyenne and Sun Valley Estates LLC (generally located south of Raleigh Drive). There being no comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing for a bar and grill application filed with the City Clerk’s Office for FAFO Restaurant Group LLC d/b/a Dog Haus Restaurant, 3838 Atkins St., Cheyenne, WY. Public comment was made by: Marlena and Charles Schultz. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook and Mr. Esquibel. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for the City of Cheyenne’s Annual Action Plan Program Year 2023 prepared by the Cheyenne Housing and Community Development office. Comment was made by the following member of the governing body: Dr. Aldrich. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located west of Ridge Road, between Jackson Street and Douglas Street. Reporting for Public Services Committee, Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Michael White. Comments were made by the following members of the governing body: Mayor Collins and Mr. Cook.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located at 5224 Ridge Road (west of Ridge Road, between Jackson Street and Douglas Street). Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Dr. Aldrich.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential - Medium Density for land located on Lots 1 and 2, Block 1, Twin 22 Subdivision. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Brandon Swain, landowner. Comment was made by the following member of the governing body: Dr. Aldrich.

ORDINANCE –2nd READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 12.04, Streets, Sidewalks and Driveways Generally, within Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, to amend provision Governing contract approvals. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Rinne voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Laybourn and Mr. Segrave.

ORDINANCE –2nd READING – Amending Ordinance No. 4429 updating the City of Cheyenne’s Solid Waste Fee Schedule. Mr. White moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mayor Collins, Mr. Laybourn, Dr. Rinne and Mr. Segrave.

[CA] RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#6319)

RESOLUTION – For naming the median which contains the Historic Airport Fountain, located to the east of the intersection of Central Avenue and East 8th Avenue, to be known as Airport Fountain Park. Dr. Rinne moved to adopt, seconded by Mr. Esquibel. Dr. Aldrich moved to amend the name by removing the word “Park”. Motion died due to lack of a second. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr.

Cook, Mr. Johnson and Mr. Segrave voting “no”. Public comment was made by: Seth Lloyd, Milward Simpson and Michael White. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Cook, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#6320)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant to provide the local match for operating funds for the City of Cheyenne for its Transit Program. Motion (per Consent Agenda) carried. (#6321)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission Ground Water Exploratory Grants Program for the Borie Wellfield Expansion Project in the amount of \$400,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents -- referred to Finance Committee. (SPONSOR – MR. WHITE)

[CA] RESOLUTION – Approving Water and/or Sanitary Sewer Service, by Outside User Agreement, for Advanced Communications Technology Inc, for the property at Lot 3, Block 1, North Range Business Park, 13th Filing, Laramie County, Wyoming (located southeast of the intersection of Happy Jack Road and Bruns Way) -- referred to Public Services Committee. (SPONSOR – MR. COOK)

[CA] RESOLUTION – Adopting the City of Cheyenne’s Annual Action Plan 2023, prepared by the Cheyenne Housing and Community Development Office -- referred to Finance Committee. (SPONSOR – DR. ALDRICH)

Agreement for the Purchase, Sale and Exchange of Lands between the City of Cheyenne and Sun Valley Estates LLC for the exchange of real property, 15,365 SF, from the City to Sun Valley Estates LLC and 15,366 SF, from Sun Valley Estates LLC to the City, both having an appraised value of \$100,000.00 and generally located south of Raleigh Drive. Mr. White moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#7743)

[CA] Memorandum of Understanding by and between Laramie County, the City of Cheyenne, the Cheyenne Board of Public Utilities, the Cheyenne/Laramie County Board of Health, and the Cheyenne Regional Airport Board regarding the management of the ESRI Enterprise Agreement (Various City Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$103,500.00). (#7744)

[CA] Telecommunications Right-of-Way License and Use Agreement between the City of Cheyenne and AT&T Corp (Revenue to the City). Motion (per Consent Agenda) carried. (#7745)

[CA] Lease Agreement between the City of Cheyenne and Union Telephone Company for telecommunications operations and tower maintenance (Revenue to the City) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation services for the Summer Rec Camp Program (Recreation Programs Fund) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping, and other activities during the 2023 Cheyenne Frontier Days celebration (Revenue to the City) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Carebridge Corporation for the Employee Assistance Program (EAP) (General Fund) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and AVI Professional Corporation for the design of the Dry Creek Dredging and Maintenance Project (2019-2022 Optional 1% Sales Tax Fund) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and AVI Professional Corporation for the Public Works Improvements Project (2019-2022 Optional 1% Sales Tax Fund) -- referred to Finance Committee.

[CA] Pipeline Easement Agreement between the City of Cheyenne and Samson Exploration, LLC for installation and maintenance of pipelines on City owned property (Revenue to the City) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Climb Wyoming to provide employment opportunities for Climb Wyoming participants within the City of Cheyenne -- referred to Finance Committee.

[CA] Memorandum of Understanding pursuant to Resolution No. 6316 between the City of Cheyenne and the Children's Museum of Cheyenne for Infrastructure Enhancements (2021 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7625 for the Agreement between the City of Cheyenne and the Wyoming Department of Transportation (WYDOT) for a Wyoming Rural Public Transportation grant to assist in providing a local match for operating funds for the Transit Program for Fiscal Year 2023 (5311 WYDOT Grant). Motion (per Consent Agenda) carried. (#7625)

[CA] Contract Modification #4 to Contract #7427 between the City of Cheyenne and Russell+Mills Studios Inc. for the East Cheyenne Community Park Master Site Development Plan (2017 Specific Purpose Option Tax) -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7606 between the City of Cheyenne and Western EcoSystems Technology for environmental services for the Dry Creek Dredging Project (2019-2022 Optional 1% Sales Tax Fund) -- referred to Finance Committee.

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for City employees (Various City Funds) -- referred to Finance Committee.

[CA] Consideration of Bid #E-16-23 for a City Network Operations Core Layer 3 Switch Replacement (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid from High Country Workplace Technologies, Arvada, CO, in an amount not to exceed \$70,777.39).

[CA] Consideration of Bid #E-17-23 for the surplus sale of one (1) used reel grinder and one (1) used bedknife grinder (Revenue to the City). Motion (per Consent Agenda) carried (accepted bid from L.L. Johnson Distributing Company, Denver, CO, in an amount not to exceed \$10,000.00).

[CA] Consideration of Bid #E-18-23 for a Professional Services Agreement between the City of Cheyenne and Vector Disease Control International (VDCI) for Mosquito Site Testing and Mosquito Larvicide Application (Weed & Pest Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$222,668.00). (#7746)

[CA] Consideration of Bid #S-18-23 for an Agreement between the City of Cheyenne and S & S Builders, LLC for the Greater Cheyenne Greenway, Greenway Commons Retaining Wall Re-Construction (2017 and 2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$153,155.00). (#7747)

[CA] Consideration to Purchase between the City of Cheyenne and Econolite for traffic controller cabinets, controllers and conflict monitors for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$127,247.62).

[CA] Consideration of Bid #S-19-23 for an Agreement between the City of Cheyenne and T C Solutions for the Cheyenne Junior League Storage Facility Construction Project (Development Impact Fees and Cheyenne Community Recreation District Grant) -- referred to Finance Committee.

[CA] Consideration of Bid #S-21-23 for an Agreement between the City of Cheyenne and Miller & Sons Construction, Inc. for the 2023 Miscellaneous Concrete Project (2019-2022 Optional 1% Sales Tax Fund) -- referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and High West Energy for installation of 3 Phase Power at the new Countryside & Whitney Fire Station (2017 and 2021 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

[CA] Bar & grill liquor license application filed with the City Clerk's Office for Ace's Range LLC d/b/a Ace's Range, 1505 Pioneer Ave., Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Winery permit application filed with the City Clerk's Office for The Blue Stem Wine House, LLC d/b/a The Blue Stem Wine House, 1909 Warren Ave., Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 8, 2023 Wyoming Association of Municipalities Summer Convention Business Meeting to be held in Cody, Wyoming -- referred to Finance Committee.

Appointment of Brian Casey to the International Fire Code Board of Appeals. Dr. Aldrich moved to approve, seconded by Mr. Johnson. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Collins who did not vote (Mayoral appointment).

Reappointment of Brandon VanTassell to the International Fire Code Board of Appeals. Dr. Aldrich moved to approve, seconded by Mr. Johnson. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Collins who did not vote (Mayoral appointment).

There were no comments made on the Voucher Report as presented.

There were no comments made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held May 8, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk's Office for Stella Polare LLC d/b/a L'Osteria Mondello, 1507 Stillwater Ave. Ste. D, Cheyenne, WY.

The following members of the governing body made comments under other business: Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:05

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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